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POLITICS

UP Higher Judicial Service Rules Amendment: Explanation & Analysis

An explainer on the PIL challenging Uttar Pradesh's 2023 amendment to its Higher Judicial Service Rules — what the amendment changes, why it matters beyond the legal profession, and what courts' increasing convenience with their own regulation signals for accountability under law.

BY MOULI SHARMA

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ABOUT

The Voice Express

The Truth Takes Time.

EDITOR IN CHIEF

Mouli

WEB DEVELOPER

Mitali (Aayat Mahnoor)

CONTACT

thevoiceexpress@proton.me

WEBSITE

<https://thevoiceexpress.in>

LOCATION

New Delhi, India

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UPASANA AGARWAL, 2023

What does a precedent for such judicial amendments mean for the common man?

A PIL challenging the validity of Rule 5 of UP's Higher Judicial Service Rules, 1975, in the Allahabad High Court, has brought under scrutiny its 2023 amendment & courts' increasingly convenient interference with judicial regulation, whose notification was just issued this January. The following article explains why amendments like these affect more than just lawyers & judges, what the common man has at stake, & why speculation over why & how these decisions are taken is necessary to keep lawmaking powers accountable & in check.

UP's Higher Judicial Service Rules, 1975

The Uttar Pradesh Judicial Service Rules, 1975, is a short super session document laying down 34 rules first made by the Governor of UP in 1975. This was for 'regulating the recruitment and appointment to the Uttar Pradesh Higher Judicial Service and conditions of service and of persons appointed thereto.'

Constitutionally, this power (to dictate & amend these rules) is granted to State Governors by Article 309 & Article 233, the latter of which specifically discusses the appointment of district judges, providing that these rules be made in consultation with the respective High Courts of the States. These articles, in accordance with which the rules are written, are a brief & recommended read, attached at the end of the article.

The Judiciary in India is a fast-evolving organism, following something called, an 'adversarial' model of law, which in simple terms reabsorbs every judicial decision taken back into its basis for taking the ones that are to come. This is why it only makes sense that the rules governing a higher judiciary, which one can argue need to take into account its changing precedent, must also be subject to change. But neither of these articles explicitly describes a model for the amendment of such legislature, leaving room for an ambiguity within which this PIL resides.

The 2023 Amendment

WHAT WAS CHANGED?

From LiveLaw.in's summary of Rule 5 of U.P. Higher Judicial Service Rules, 1975 as amended in the year 2023 with the issuance of the notification dated 11th January 2024:

Rule 5 of the U.P. Higher Judicial Service Rules, 1975 provides for sources of recruitments in High Judiciary. Prior to amendment sub-rule (c) of Rule 5 provided that for direct recruitment from amongst advocates, it was necessary to have a standing of not less than 7 years as on the last date fixed for submission of the application form. By amendment notification dated 11th January 2024, sub-rule (c) was amended to the extent that the words “practicing as an Advocate” replaced the word “standing.”

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This refers to the following change:

Rule 5, Sub-rule C, Pre-amendment: “**By direct recruitment from amongst the Advocates of not less than seven years standing on the first day of January next following the year in which the notice inviting applications is published.**”

Rule 5, Sub-rule C, Post-amendment: “**By direct recruitment from amongst the Advocates who have been, for not less than seven years, practicing as an Advocate, as on the last date fixed for the submission of application forms;**

Provided that only such advocates shall be permitted to appear in the examination process who have been engaged independently for conducting not less than 30 cases (other than bunch cases) for Unreserved categories and 24 cases (other than bunch cases) for Scheduled Castes, Scheduled Tribes and Other Backward Classes in the preceding three years, from the year of publication of advertisement for recruitment, before any Court. The certificate of such independent engagement may be issued by District & Sessions Judge of the District or Registrar General/Registrar of High Courts or Secretary General of Supreme Court, as the case may be.” (sic)

Read Upasana Agarwal's full report of the case [here](#).^[1]

WHAT DOES THIS MEAN IN LAYMAN'S TERMS?

Essentially, the rules now dictate that for the direct recruitment of district & sessions judges, it is necessary for them to have been in practice for no less than 7 years, while merely having the standing of advocate for the same duration would have sufficed before.

This focus on quantifiable experience is further emphasised by the addition of a proviso that, in addition to this 7 years of continuous practice, also requires applicants to have been certifiably engaged in 30 independent cases (24 for reserved categories).

The change that this will bring about is to pull more active lawyers into the courts as judges, & disqualify those who have merely been making the cut due to holding the title of ‘advocate’ as opposed to actively participating.

Is the 2023 Amendment good or bad?

In effect, this amendment makes the eligibility criteria for district & sessions judges more stringent, & in this regard can only serve to improve the legal service & justice that civilians receive. The concerned features amended & added are both relevant, as legal practice in India is a continuously evolving bureaucratic process, & evidence of recent & consistent participation is a legitimate question of qualification for a higher court judge; it makes the difference between being competent & out of touch.

‘It changes things, because obviously, you would prefer a Judge who has been practising for 7 years, rather than someone who’s just waited 7 years after acquiring the title & doesn’t have any real experience.’ Jia Ahuja, a journalist specialising in information property law, told TVE.

So what is the problem? How does this simple, reasonable amendment, ‘violate the Constitution’?

WHY IS THERE A PIL AGAINST THIS CHANGE?

The problem arises not from what the amendment changes, but how. Petitioner Trideep Narayan Pandey's case consists of four core arguments, all boiling down to the same principle. It wasn't done the right *way*. Why is an authority whose power to influence lawmaking about its own structural & recruitment procedure is only vaguely stipulated in the Constitution, actively recommending amendments to pre-existing legislature?

Another argument put forth by Pandey’s counsel was with of Sub-rule C (refer to earlier section), calling it ‘arbitrary’ & in violation of article 14 of the Indian Constitution (‘*The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.*’) Both of these arguments were disputed in the honourable court’s proceedings on the 7th of February, where the defending counsel brought forth an obvious conflict of interest of the petitioner, with Pandey himself being an aspirant of the higher judicial services. Against the claims of constitutional violations, it argued that constitutional articles should not be looked at in ‘isolation’ & that the Indian Constitution holistically supports & encourages the High Court’s authority in making legal recommendations.

Largely, the defending counsel dismissed the petition as lacking ‘legal sanctity,’ & both parties have now been given time to exchange affidavits.

Discussion: How much power do the courts *really* have?

As those who recall CBSE's sixth-grade civics curriculum would remember, India's governance & political order is one that functions on the principle of 'checks & balances.' A separation of the Judiciary from the Legislature & the Executive is fundamental to this principle. The second reasoning defending the amendment fails to acknowledge that there is a reason why the Constitution upon 'holistic reading' appears to legitimise court-given 'recommendations' to legislative policy, with the specific exception of the two articles concerning lawmaking about courts themselves, & is almost covert in attempting to distract from this obvious catch.

Even if the first claim stands true, & the petitioner's motives are ulterior, the same conflict of interest that is being used to defend the amendment is also found within the very act of a High Court taking control of its own regulation policy. What is noteworthy about this case is not so much the actual change enacted, but rather the simple, effortless nature of the process that led to it; quiet & unnoticed.

The State's defense & casual dismissal of a question raised over its jurisdiction seems to imply an understood normalization of such an initiative. It is acknowledged that there is a gap in the constitutional framework where there should be a provision for legislative amendment of judicial regulation as opposed to just initiation, & it not only leaves open room for but necessitates external direction. But does it have to be the Judiciary to take it upon itself to fill this gap? Has it already been for a long time? Should it be? Just how much power does the judiciary really have, if such interpretation goes unchallenged?

Just how regulated are the self-regulated?

Read for yourself:

1. UP Higher Judicial Service Rules, 1975 (Pre-Amendment)^[2]

1. UP Higher Judicial Service Rules, 1975 (Amended, 2023)^[3]

1. Court Order on PIL (7th February 2024)^[4]

1. The Constitution of India, As on 26th November 2021^[5]

2. Agarwal, U. (2024, February 10). *PIL In Allahabad High Court Challenges Amendment To Rule Providing For Direct Recruitment Of Advocates In UP Higher Judicial Services*. LiveLaw.in^[1]

| Source: TVE

ABOUT THE AUTHOR



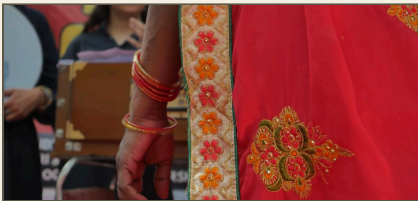
Mouli Sharma

CONTRIBUTOR

Mouli Sharma is a journalist, freelance illustrator, and writer from New Delhi, India. She is a published photojournalist & illustrator, having been featured in The Hindu College Gazette, & the quarterly Pink Disco. Mouli took over as the Editor of The Voice Express (<https://thevoiceexpress.github.io/e-mag/>) back in September 2023.

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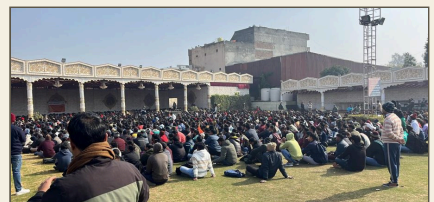
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SOURCES & REFERENCES

- [1] [here](#).

[2] UP Higher Judicial Service Rules, 1975 (Pre-Amendment)

[3] UP Higher Judicial Service Rules, 1975 (Amended, 2023)
- [4] Court Order on PIL (7th February 2024)

[5] The Constitution of India, As on 26th November 2021